Final adversarial marker feedback (verbatim)

Two independent hostile markers marked the final text and tried to break it against the readings. Their sheets follow word for word. After they marked, the one certain defect both found (treating ‘the personal guarantee provided by Rocky’ as unproven) was fixed, as were two further points from Marker A that the source text confirms (‘unqualified’ removed, since Rocky’s words were conditional; ‘supports it’ changed to ‘supports intention’). Points raised by only one marker that the other marker disputes, and arguments that would need words the 1,500 limit does not leave, have not been applied; they are set out in the sheets.

Marker A

Marker A: hostile examination of the final answer

Marked against SHEET_v12 read with RULINGS R-P, R-Y, R-Z, R-AB, R-AC, R-AD and R-AE. Every authority in the footnotes was re-read at its page in the casebook transcription or, where the point is official-only, in the saved official judgment. Verifier run: 40 quotations, 0 FAIL, 2 CHECK PIN (Brambles 176 and Pao On 629 to 630, both known artefacts and both correct on re-reading). Body 1,488 words; the stated 1,491 is body plus three under R-P, so no fault.

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1. Certain defects

C1. A proven fact treated as unproven, and the narrator’s words put in AMPL’s mouth (Part II, guarantee paragraph).

Sentence: “AMPL’s call ‘under the personal guarantee provided by Rocky’ assumes, but does not prove, his assent, and because privity prevents AMPL and Grace’s contract imposing obligations on Rocky,[^29] AMPL must show that assent.”

Proof: the problem (question.txt, final page) reads “AMPL called for payment of the Loan under the personal guarantee provided by Rocky”. The words ‘provided by Rocky’ are the problem’s own description, not AMPL’s assertion, and the Instructions (p 1) say “You may assume the facts provided in the scenario to be proven”. What is proven is that Rocky provided a guarantee; what is open is only what ‘provided’ consisted of (assent to the written clause, his oral undertaking, or both). The sentence attributes the words to “AMPL’s call” and then says they do “not prove” his assent, which denies a proven fact and misidentifies the speaker (sheet D4, which lists this exact phrase; sheet §3, second bullet).

Fix (+4 words): “A guarantee was ‘provided by Rocky’, but whether by assent to the clause or only by his oral undertaking is open, and because privity prevents AMPL and Grace’s contract imposing obligations on Rocky,[^29] AMPL must show that assent.”

C2. ‘Unqualified’ misdescribes words the problem qualifies (Part II, certainty paragraph).

Sentence: “Read objectively, his unqualified ‘I will do that’, answering Pierre’s expectation that he ‘ensure’ payment, likely promised that Grace would pay, not merely that Rocky would try.”

Proof: Rocky’s words are “I will do that if you also promise to pay $10,000 to me directly once Grace repays the Loan” (question.txt). They carry an express ‘if’ qualifier, and the answer’s own offer paragraph relies on it (“offered a promise for a promise”). The point intended is that the words contain no language of effort, which ‘unqualified’ does not say.

Fix (−1 word): “Read objectively, his ‘I will do that’, answering Pierre’s expectation that he ‘ensure’ payment, contains no words of effort and likely promised that Grace would pay, not merely that Rocky would try.” Net cost +3 if the clause is added; the cheapest certain fix is simply to delete ‘unqualified’ (−1).

C3. A pronoun with two possible antecedents (Part I, intention paragraph).

Sentence: “The qualifier, however, raises whether the parties intended immediate obligations, which is assessed objectively, with the onus on Grace as the party alleging the contract, although their commercial status as ‘project developers’ supports it.”

Proof: ‘it’ can be read as ‘the onus’ or as the intention; only the second makes sense (Ermogenous [25], which the answer cites, lists ‘the status of the parties’ as a factor going to intention). Sheet R1 and R-V(1): a pronoun is a lapse where its antecedent is unclear.

Fix (0 words): replace “supports it” with “supports intention”.

Word cost of all three: +4 −1 +0 = +3, taking the body to 1,491 and the stated count to 1,494; within 1,497.

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2. Contestable points, with fixes

K1. Whose satisfaction (Part I, intention paragraph), an inference stated without its reason. “‘satisfactory’ leaves the judgment to the party the condition protects,[^8] here Rocky”. Gibbs CJ at 581 grounds the rule in the clause being “generally entirely for the protection of the purchaser” and leaves room for “a clear indication to the contrary”. Nothing in the email says whose satisfaction; Grace could say the conditions were to be satisfactory to both, or objectively. Fix (+2): “here Rocky as lender”.

K2. Rocky’s best authority on the qualifier is missed. *Masters v Cameron* (1954) 91 CLR 353, 362 quotes Jessel MR in *Crossley v Maycock* (1874) LR 18 Eq 180, 181 to 182: “if the agreement is made subject to certain conditions then specified or to be specified by the party making it, or by his solicitor, then, until those conditions are accepted, there is no final agreement”. That is Rocky’s ‘subject to satisfactory conditions’ almost word for word, stated in a High Court joint judgment’s survey, and far stronger than a single judge’s dictum in *Godecke* (Gibbs J at 646 to 647, where he says only that it “does not necessarily follow” that such an agreement binds). The casebook elides this sentence, so it is credit and official-only; but the objectively best answer would use it, with Jessel MR named, at fn 9.

K3. Brambles 177 cited for consideration (fn 4). The passage (Heydon JA quoting McHugh JA in *Integrated Computer Services*) describes ‘classical theory’ (“an exchange of promises by means of an offer and its acceptance”) as a prelude to saying commercial dealings often do not fit it. It is not a statement of the consideration rule. *Australian Woollen Mills* 456 to 457 (“the relation of a quid pro quo”) is the course authority for consideration as the price of the promise. Fix (footnotes only, 0 body words): fn 4 becomes the full *Australian Woollen Mills* citation at 456 to 457 with the short title; fn 31 and fn 36 become “(n 4)”; fn 19 takes the full *Brambles*

citation and short title; fn 21 and fn 37 become "(n 19)".

K4. Gibson for the 5 February call (fn 1). *Gibson* at 298 decides that "may be prepared to sell" lacks commitment. It does not decide that a request that the other party make an offer is an invitation. The use is analogical and passes, but a stricter marker would want the point stated as the absence of any promise by Grace, which is what *Gibson* actually turns on.

K5. Port Jackson (fn 16, fn 22). The words quoted are Lord Reid's requisites as Mason and Jacobs JJ set them out at 269, and the pin is right. But Mason and Jacobs JJ were in the majority that the Privy Council reversed; Barwick CJ (dissenting in the High Court, whose view the Board preferred) states the same requisites at 240, and the sheet names 240. The answer's 'rev'd' is honest, but citing the reversed majority when the vindicated judge states the same rule is the weaker choice. Fix (footnotes only): cite *Port Jackson* 240 (Barwick CJ). Separately, fn 16 puts 'quoting' inside the judge's brackets, unlike every other 'quoting' footnote in the answer (fn 4, 6, 11, 21, 27); AGLC form is "269 (Mason and Jacobs JJ), quoting *Scruttons Ltd v Midland Silicones Ltd* [1962] AC 446, 474 (Lord Reid)".

K6. Lord Reid's requisites for the director question (Part II, agency paragraph). The requisites concern a carrier contracting as agent for a stevedore to secure an exemption. Using them to decide whether a controlling director spoke for his company is a stretch; the answer's own facts ('controls AMPL', 'at its office', 'about its loan') do the work. Fix: state the question as authority to act for AMPL and keep fn 22 as the general agency source, or cite *Ermogenous* [24] for objective attribution (credit).

K7. Privity of the $10,000 promise is never addressed (sheet II.F1). If 'the clause' that was 'included in the Loan Agreement' is the $10,000 term, AMPL will say the term lives in a document between AMPL and Grace to which Rocky is no party. The answer needs one sentence: Rocky is the promisee and named payee ('to me directly') of an oral promise for which he gave consideration, so privity is no bar; and, in a clause, 'the clause' most naturally means the guarantee clause the problem names first. About 30 words.

K8. The letter of comfort point (sheet II.D). Rocky's 'ensure' undertaking is the obvious candidate for comparison with the letter in *Banque Brussels*; the answer applies 'appropriately promissory' only to the $10,000 promise and never weighs whether Rocky's own undertaking binds him likewise. About 15 words.

K9. The existing legal duty rule if Pierre promised personally (sheet II.C2). If Pierre is the promisee, any duty Rocky owed under the guarantee was owed to AMPL, a third party; *Pao On* 632 holds that a promise to perform a duty owed to a third party is good consideration. The answer's "with the promisee" gestures at this but never states the branch. About 15 words.

K10. The duty to co-operate (sheet II.H). AMPL called the guarantee before the Loan was due on the 8 April reading; Rocky can argue AMPL cannot rely on its own premature call to put the condition 'once Grace repays' out of reach. The answer never names or meets the duty to co-operate. About 20 words.

K11. The interest payments (sheet II.G; R-AA(3)). "Grace made appropriate monthly repayments of the interest on the Loan to AMPL" between 8 April 2024 and 8 February 2025 is the fact AMPL's opponents will reach for on the start date. The answer's rule excludes post-contractual conduct (Brambles 164, correct), but never applies it to this fact, so a cold reader cannot tell whether it was seen. About 12 words.

K12. The onus in Part I. The answer places the onus on Grace as the party alleging the 12 February contract. That is coherent with its defensive framing (Rocky never lent, so only Grace would sue on the email), and I accept it; but the sheet's I.D core frames Rocky as the party alleging, so a marker reading the sheet literally will query it. The framing should be stated once ("Grace, who alone would sue on it").

Funding for K7 to K11 (about 92 words against 6 words of headroom after C1 to C3): cut "and likely never if Rocky pays it himself" in the final paragraph, which repeats the II.H paragraph's last sentence (−8); cut "Rocky could argue his 12 February email was merely a negotiating step, as it opens 'Confirming discussions' and its other points promise nothing" to "Its other points promise nothing" (−17); compress the Pao On and Roscorla paragraph, whose fallback the answer itself calls "doubtful" (about −20); compress the Part I conclusion (about −10). Even so, not all five fit; on marks at risk per word the order is K7, K10, K9, K8, K11.

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3. Currency of each authority

Authority	Status (checked 13 October 2026)
Gibson v Manchester City Council [1979] 1 WLR 294	Good law (HL); routinely applied in Australia.
Empirnall Holdings v Machon Paull (1988) 14 NSWLR 523	Good law (NSWCA); McHugh JA's 535 to 536 test is the leading NSW statement.
Brambles Holdings v Bathurst City Council (2001) 53 NSWLR 153	Good law on formation. Ipp AJA's 191 'ambiguity gateway' (from *Codelfa*) is contested: *Mainteck Services v Stein Heurtey* [2014] NSWCA 184 and *Mount Bruce Mining v Wright Prospecting* (2015) 256 CLR 104 read the gateway down, though *Western Export Services v Jireh* (2011) 86 ALJR 1 says *Codelfa* binds until the High Court rules. The answer's 'arguably ambiguous' hedge means nothing turns on it. Heydon JA's 164 point is confirmed by *Agricultural and Rural Finance v Gardiner* (2008) 238 CLR 570.
Ermogenous v Greek Orthodox Community (2002) 209 CLR 95	Good law; the leading authority.
Masters v Cameron (1954) 91 CLR 353	Good law; the fourth class (*Sinclair Scott*) is outside the readings and not needed.
Godecke v Kirwan (1973) 129 CLR 629	Good law. Gibbs J at 646 to 647 is a single judge's dictum; the answer says 'doubted', which is accurate.
Meehan v Jones (1982) 149 CLR 571	Good law. Gibbs CJ (honestly) and Mason J (honestly, or honestly and reasonably) differ; the answer cites each for his own point.
Thorby v Goldberg (1964) 112 CLR 597	Good law (cited through Mason J).
Coulls v Bagot's Executor (1967) 119 CLR 460	Good law on party status; Windeyer J's 494 and 495 passages are from a dissent on the result but state the settled rule, and the answer labels them 'dissenting'.
Trident v McNiece (1988) 165 CLR 107	Good law; the burden aspect is untouched by the case's limited benefit exception.
Port Jackson v Salmond & Spraggon (1978) 139 CLR 231	Reversed: *New York Star* (1980) 144 CLR 300 (PC). The answer flags it.

	See K5.
Sundell v Emm Yannoulatos (1955) 56 SR (NSW) 323	Good law in NSW; *Musumeci v Winadell* (1994) 34 NSWLR 723 (practical benefit) is first instance and not needed.
Wigan v Edwards (1973) 47 ALJR 586	Good law; Mason J at 594 with Walsh and Gibbs JJ agreeing on the point.
Banque Brussels Lambert v ANI (1989) 21 NSWLR 502	First instance (Rogers CJ Comm D); good law and commonly applied. The answer does not overstate its level.
Upper Hunter v Australian Chilling (1968) 118 CLR 429	Good law.
Australian Woollen Mills v Commonwealth (1954) 92 CLR 424	Good law.
Roscorla v Thomas (1842) 3 QB 234	Good law, subject to the *Pao On* exception the answer applies.
Pao On v Lau Yiu Long [1980] AC 614	Good law; followed in Australia.

4. Is this the objectively best answer?

No. It is a very strong answer, and on the authorities it uses it is almost faultless: every quotation checks verbatim, every pin is right, every judge is correctly named, the one dissent is labelled, the one reversed case is flagged, and the single-judge dictum is hedged. It is not the best answer for four reasons.

First, C1 is a substantive error, not a slip. The problem proves that Rocky provided a guarantee; the live question is what he provided. By saying AMPL's call "does not prove" his assent, the answer frames Rocky's exposure on a premise the facts deny, and a marker who reads the problem's last paragraph closely will see it.

Second, it misses the authority that most squarely fits the 12 February qualifier (K2). Rocky's email made the loan 'subject to satisfactory conditions'; Jessel MR's words quoted at *Masters* 362 deal with an agreement "subject to certain conditions then specified or to be specified by the party making it". The better answer leads with that and uses *Godecke* only to distinguish Grace's best case.

Third, it leaves four arguments unmet that a contracts academic would expect for one side or the other: privity of the $10,000 promise (K7), the duty to co-operate against AMPL's premature call (K10), the third-party branch of the existing legal duty rule (K9), and whether Rocky's own 'ensure' undertaking is promissory or mere comfort (K8).

Fourth, two citations are used for less than they say (K3, K6).

The better answer would: fix C1 to C3; put *Crossley* (through *Masters* 362) against Grace on the qualifier; add the one-sentence privity answer for the $10,000 claim; name and meet the duty to co-operate in the condition paragraph; state the *Pao On* 632 branch in a clause; and fund it by cutting the repeated 'pays it himself' point, compressing the Part I opening and the doubtful past consideration fallback.

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5. Margin comments, paragraph by paragraph

I, para 1 (offer). Good close reading of 'I will lend' against 'may be prepared to sell'. *Gibson* is stretched for the 5 February call; the point is that Grace promised nothing. "Rocky could argue … negotiating step" is fair but costs words the answer needs later.

I, para 2 (acceptance and consideration). Clean. 'Confirmed' answered against 'Please confirm agreement' is exactly right. Ensure your citation precisely supports the proposition for which it is relied: fn 4 (*Brambles* 177) describes classical theory; it is not the consideration rule.

I, para 3 (intention). The strongest paragraph in Part I. The pronoun 'it' at the end of the first sentence is unclear (C3). "here Rocky" needs its reason (K1). Rocky's best authority, Jessel MR at *Masters* 362, is missing (K2).

I, para 4 (certainty). Excellent distinction of *Meehan*: honesty governing an external condition against discretion over the loan's content. 'Perhaps' and the honest-and-reasonable variant could be met in a clause, but this is well done.

I, para 5 (privity). Correct and well sourced; the signature point using Mrs Coulls is effective. "took his guarantee" is consistent with the problem's 'provided by Rocky', which makes the Part II sentence in C1 all the harder to reconcile.

I, para 6 (conclusion). Clear bottom line; reimbursement disposed of in substantive terms.

II, para 1 (offer and acceptance). Correct; Lord Greene MR's words are properly attributed. Disclose that *Eccles* concerned a formal contract, so the words apply by analogy.

II, para 2 (who promised). Sensible weighing of 'you' against control, office and loan. Lord Reid's requisites are an odd vehicle for a director question (K6). Further information (whom Pierre spoke for) is implicit; state it.

II, para 3 (consideration). The existing legal duty rule is named and well met on timing. The *Pao On* 632 branch is missing (K9).

II, para 4 (intention). Correct use of *Ermogenous* [26]. Further analysis is required: Rocky's 'ensure' undertaking against the letter of comfort in *Banque Brussels* is never weighed (K8).

II, para 5 (certainty). "unqualified" misdescribes Rocky's conditional words (C2). Otherwise sound.

II, para 6 (the guarantee). Your statement of the facts is incorrect: the problem proves a guarantee was 'provided by Rocky', and those are not AMPL's words (C1). The *Empirnall* 535 to 536 analysis that follows is good and fairly hedged.

II, para 7 (consideration for the guarantee). Accurate on *Pao On* and *Roscorla*; the fallback through signing the Loan Agreement is a good point. The third *Pao On* condition is not stated; not fatal.

II, para 8 (the 12 months). Good textual analysis of 'recorded' against the 4% rate. The interest payments fact is not applied (K11).

II, para 9 (condition). Correct classification with *Meehan* 582; the commercial reading is put and met. The duty to co-operate is

missing (K10).

II, para 10 (conclusion). Exposure stated precisely, as R-AD requires. The last clause repeats para 9.

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6. Marks

Holistic mark: 84 (Distinction, at the top of the band). The law is accurate and the citations are exact, which is rare; the reasoning is explicit and hedged. It stops short of High Distinction because it misreads a proven fact on the most valuable issue (Rocky's exposure on the guarantee), misses the best authority on the 12 February qualifier, and leaves four arguments for one side or the other unmet.

Rubric mark (SHEET_v12 with R-AB to R-AE): 77.

Multipliers: Excellent 1.00; Very Good 0.75; Good 0.60; Fair 0.45; Poor 0.20; Omitted 0.

Unit	Pts	Grade	Score	Reason
P	2.0	Exc	2.000	C3 named and disposed of; Development Agreement as stipulated
I.A	3.0	VG	2.250	*Gibson* stretched for 5 February (K4)
I.B	2.0	Exc	2.000	
I.C	2.0	VG	1.500	fn 4 source (K3); the Loan Agreement's fresh terms and AMPL's price not named
I.D	6.0	VG	4.500	'here Rocky' unreasoned (K1); *Masters* framed without the formal-contract analogy; C3 lapse
I.E	3.0	VG	2.250	Gibbs J's hedges and the 'Perhaps' exception not met in terms
I.F1	2.5	VG	1.875	reversed majority cited where Barwick CJ at 240 states the rule (K5)
I.F2	7.5	Exc	7.500	
I.F3	1.0	Good	0.600	routes around privity only by the agency line
II.A	2.5	Exc	2.500	
II.B	3.0	VG	2.250	Lord Greene MR's analogy not disclosed
II.C1	1.5	VG	1.125	price moving from Rocky implicit only
II.C2	5.5	VG	4.125	*Pao On* 632 branch missing (K9)
II.D	5.0	Good	3.000	letter of comfort point and 'binds Rocky likewise' missing (K8)
II.E	2.5	VG	1.875	C2; 'once Grace repays' not illusory left to II.H
II.F1	1.0	Fair	0.450	Rocky as promisee and 'the clause' both ways not addressed (K7)
II.F2	4.0	VG	3.000	further information implicit; K6
II.G	5.0	VG	3.750	interest payments not applied (K11)
II.H	4.5	VG	3.375	duty to co-operate missing (K10)
II.I1	4.0	Fair (D4 cap)	1.800	C1
II.I2	3.5	Exc	3.500	
II.I3	4.0	Exc	4.000	
II.I4	5.0	VG	3.750	March instalment not addressed
Units	**80.0**		**62.975**	
R1 Style	4.0	VG	3.000	C2, C3
R2 Application	3.0	VG	2.250	
R3 Structure	2.0	Exc	2.000	party headings per R-AC
R4 Issues	2.0	VG	1.500	K7 to K10
R5 Prioritisation	1.5	Exc	1.500	
R6 Uncertainty	2.0	VG	1.500	further information on whom Pierre spoke for left implicit
R7 Terminology	1.0	Exc	1.000	
R8 Citation	2.5	VG	1.875	fn 16 'quoting' form inconsistent; K3, K5
R9 Word count	1.0	Exc	1.000	1,491 = 1,488 + 3 (R-P)

R10 Consistency	1.0	VG	0.750	Part I ‘took his guarantee’ against Part II’s ‘does not prove’ (C1)
Global	**20.0**		**16.375**	

Arithmetic: 62.975 + 16.375 = 79.350; less D4 (C1) −2 = 77.350; rounded down, **77**.

LAWS1061-format grid

LAWS1150/JURD7150: Principles of Private Law Mid-Term Assignment T3 2026: Feedback Sheet

STUDENT NAME & zID: Yusuf Ahmed Marked by: A Cross-marked: No

	Exc	**VG**	**Good**	**Fair**	**Poor**	**Omit’d**
PRELIMINARY: Development Agreement; reimbursement	x					
I. Rocky v Grace (27%)						
• Offer: 5 February call; email bullet 1 (*Gibson*)		x				
• Acceptance: ‘Confirmed’ (*Empirnall*)	x					
• Consideration: promise for promise. Ensure your citation precisely supports the proposition for which it is relied: fn 4.		x				
• Intention: ‘subject to satisfactory conditions’ (*Ermogenous*, *Masters*, *Godecke*). Whose satisfaction needs its reason; consider *Masters* 362.		x				
• Certainty: illusory promise; honesty (*Meehan*)		x				
• Privity: agency (*Port Jackson*)		x				
• Privity: the rule, party status, joint promisee, signature (*Coulls*)	x					
• Privity: routes around the rule			x			
II. Rocky v AMPL, alternatively Pierre (51%)						
• Offer: ‘expected’; bilateral offer	x					
• Acceptance: oral bargain binding without the document		x				
• Consideration: price moving from Rocky		x				
• Consideration: existing legal duty rule (*Wigan*, *Sundell*). The *Pao On* branch if Pierre promised is missing.		x				
• Intention: cousins and a company (*Ermogenous*, *Banque Brussels*). Further analysis is required: Rocky’s own undertaking against a letter of comfort.			x			
• Certainty: ‘ensure’; ‘once		x				

Grace repays'						
• Privity: Rocky as promisee of the $10,000; 'the clause'				x		
• Privity: who promised, AMPL or Pierre		x				
• The 12 months (*Brambles*)		x				
• Condition precedent: 'once Grace repays' (*Meehan*). The duty to co-operate is not addressed.		x				
• AMPL's call: burden of privity; the clause; the undertaking. Your statement of the facts is incorrect: the guarantee was 'provided by Rocky'.				x		
• Content and assent (*Empirnall* 535 to 536)	x					
• Consideration from AMPL; past consideration (*Pao On*, *Roscorla*)	x					
• Timing and exposure on both readings		x				
Style, clarity of expression, conciseness, grammar & spelling, persuasiveness of argument		x				
Application of law (cases) to facts to come to conclusion, using authority		x				
Citation: References according to AGLC4. Minor non-compliance: fn 16's 'quoting' form.		x				

NB: marks are allocated for identification of issues/non-issues, knowledge of relevant law (cases), and application to facts. Not all dot points are of equal complexity or value.

TOTAL MARK: 77 (rubric); 84 (holistic)

Marker B

MARK B (hostile examiner B, independent)

Answer marked: MARKS/final/in/ANSWER.md, taken at face value. Body 1,488 words on verify.py's count; the stated 'Word count: 1,491' is body plus three (R-P), so it is correct. verify.py: 40 quotations, 0 FAIL, 2 CHECK PIN (Brambles 176 and Pao On 629–30, both known artefacts and both confirmed at source below). No em or en dash, no double quotation mark, no contraction and no first person in the body.

1. Certain defects (provable from the verbatim text)

C1. The narrated guarantee is treated as AMPL's assumption rather than as a proven fact. - Sentence: "AMPL's call 'under the personal guarantee provided by Rocky' assumes, but does not prove, his assent, and because privity prevents AMPL and Grace's contract imposing obligations on Rocky, AMPL must show that assent." - Proof: the words are the problem's, not AMPL's: 'AMPL called for payment of the Loan under the personal guarantee provided by Rocky' (question, final paragraph). The Instructions say 'You may assume the facts provided in the scenario to be proven' (Instructions p 1). On R-M, that phrase proves that Rocky provided a personal guarantee; only what 'provided' consisted of (his oral undertaking, assent to the written clause, or both) is open. Saying the fact 'does not prove' anything denies a narrated fact its force, and the sheet's D4 list names 'personal guarantee provided by Rocky' treated as a party's assertion. - Fix (+5 words; body 1,493): "Rocky 'provided' the guarantee, but whether by assenting to the clause or only by his oral undertaking is unclear, and because privity prevents AMPL and Grace's contract imposing obligations on Rocky, AMPL must show assent to the clause."

C2. Footnote 31 cites a passage about a different kind of contract. - Sentence: "but Rocky's 'I will do that', given for the $10,000 promise, likely binds him at least to his oral undertaking.[^31]" (fn 31: *Australian Woollen Mills* 456–7). - Proof: the passage at 456 is about 'cases of this class', in which 'the consideration on the part of the offeree is completely executed by the doing of the very thing which constitutes acceptance of the offer', that is, a promise given in exchange for an act; the 'quid pro quo' at [457] is the link between an announcement and an act (CB2A 103, [4.20]). On the answer's own analysis Rocky's undertaking was 'a promise

for a promise' (fn 19), so it is a bilateral contract, and the passage does not deal with it. The Court in *Australian Woollen Mills* also found no contract. Ensure your citation precisely supports the proposition for which it is relied on. - Fix (0 words): replace fn 31 with '*Brambles* (n 4) 177 (Heydon JA).', the authority the answer already uses at fn 19 for the exchange of promises, or delete the footnote and write 'as formed above' (+2 words).

C3. The two Parts take inconsistent positions on the guarantee. - Sentence (Part I): "it lent in its own name and took his guarantee, so it contracted for itself". - Proof: Part II then says AMPL 'must show that assent' and concludes he is bound by the clause only 'if Rocky assented to the clause'. Part I says, without qualification, that AMPL took his guarantee, which is the point Part II leaves open. R10 (one doctrinal footing). - Fix (0 words): "it lent in its own name and named him guarantor, so it contracted for itself".

No authority is misquoted, mis-pinned, attributed to the wrong judge or given the wrong majority or dissent label. Every pin was checked against the casebook or official text: *Gibson* 298; *Empirnall* 534 and 535–6; *Brambles* 164, 176, 177 and 191 (Ipp AJA, with whom Mason P agreed, so the majority); *Ermogenous* [25]–[26]; *Masters* 363; *Godecke* 642–3 (Walsh J) and 646–7 (Gibbs J); *Meehan* 580–2 (Gibbs CJ) and 589–90 (Mason J); *Coulls* 486, 487 (Taylor and Owen JJ) and 494, 495 (Windeyer J, correctly marked as dissenting); *Port Jackson* 269 (Mason and Jacobs JJ quoting Lord Reid); *Sundell* 327; *Wigan* 594; *Banque Brussels* 523; *Upper Hunter* 437; *Roscorla* 237; *Pao On* 629–30; *Trident* (Deane J), with no pin because the reading has no page markers (R-Y).

2. Contestable points, with fixes

1. **Part I is framed around Grace's claim, not Rocky's.** The question asks for the 'contractual claims he could make'. The opening says the primary issue is whether 'Grace could claim that Rocky failed to lend'. The claim Rocky would actually make against Grace under the February dealings is that AMPL's advance, made at his request, performed his 12 February promise, so that Grace owes him repayment. The answer dismisses this in a clause ('neither performed his email'). Further analysis is required as your statement is conclusive. The fix is to frame the opening on Rocky's claim (word-neutral). Then give one sentence of reasons: the advance was $1,150,000 rather than $1 million, made on 27 February rather than 'by 15 February', and in AMPL's name, with terms first fixed at 4% on 8 April (about +25 words).
2. **The Lord Reid conditions are used to decide whether Pierre contracted for AMPL** (fn 22: 'The same agency conditions guide whether Pierre … contracted on its behalf'). Lord Reid's four requisites govern whether a carrier contracted as agent for a stevedore so that the stevedore could take the benefit of exemption clauses. Requisites (1) and (4), that the bill makes the protection clear and that consideration moves from the stevedore, have no counterpart in whether a director's oral promise binds his company. The better course is to frame the question as which party Rocky's 'you' objectively addressed (*Ermogenous* [25]), with the authority and purporting facts as the answer already weighs them. The 'further information' about whom Pierre spoke for should also be named (R6).
3. ***Port Jackson* is cited at 269 (Mason and Jacobs JJ), the majority that the Privy Council reversed.** The 'rev'd' history is disclosed, which is correct AGLC practice. However, the sheet prefers 240 (Barwick CJ, who would have upheld the stevedore's protection), and the reversal invites a marker to query the source. Since the requisites themselves were never doubted, either pin is defensible.
4. **Footnote 4 (consideration) rests on McHugh JA's description of 'classical theory'**, where 'the typical contract is a bilateral one and consists of an exchange of promises' (*Brambles* 177). That passage is about the limits of offer-and-acceptance analysis, not a statement of consideration doctrine. *Australian Woollen Mills* 456–7 states the bargain (quid pro quo) principle directly and is the better footnote here, unlike at fn 31.
5. **II.C2 misses *Pao On*'s third-party point.** If Pierre promised personally, any existing guarantee duty was owed to AMPL, not to Pierre. A promise to perform a duty owed to a third party is good consideration (*Pao On* 632), and Mason J's own limit, 'made to the promisee under that contract' (*Wigan* 594), already points there. This is the strongest answer to AMPL's or Pierre's existing legal duty argument, and it costs one clause (+15).
6. **II.D omits the argument that most helps Rocky on his own exposure.** The answer finds intention 'whoever promised' because a fixed sum is 'appropriately promissory'. It does not put the opposite point for Rocky's own undertaking: that 'ensure' is closer to the comfort given in *Banque Brussels*, where the letter of comfort conditioned the facility. Only after that is met should it be found 'weaker here' because Rocky's words were given for a price. As it stands, *Banque Brussels* is cited without saying what the case was about (+20).
7. **II.H omits the duty to co-operate.** Rocky's best answer to 'once Grace repays' is not only a commercial reading (*Upper Hunter* 437). He can also argue that AMPL may not rely on a condition whose fulfilment its own call frustrates. That argument should be put and met: the call does not stop Grace repaying (R-O), so it fails (+20).
8. **II.I4 omits the March instalment.** Interest is shown paid only 'Between 8 April 2024 and 8 February 2025'. On the 8 April reading, whether a March 2025 instalment was missed decides whether Rocky's oral undertaking (to 'ensure … all payments') is already breached. The closing paragraph speaks only of 'any amount when due' (+15, hedged under R-M).
9. **II.F1 is never stated.** The $10,000 was to be paid 'to me directly', so Rocky is the promisee, and privity is no bar to his claim against whoever promised (*Coulls* 494). It needs one line (+12).
10. **Gibbs J in *Godecke* (646–7) is dictum.** 'Doubted' is a fair verb, but the answer then relies on it as the decisive reason ('so on balance'). A strict marker would want 'in obiter' (+2), as the sheet's D3 entry for *Godecke* 646 to 647 shows.
11. **Pierre's 'expected' is labelled an 'invitation to treat'.** That is defensible, because it drew Rocky's offer, but 'a request, not an offer' is the safer course term and costs the same.
12. ***Pao On* conditions are stated incompletely.** The answer gives the request and 'was to be remunerated', but omits that the payment 'must have been legally enforceable had it been promised in advance'. That is harmless on these facts but incomplete (+8).
13. **The lender's opening act is not named on the facts in II.G.** 'Post-contractual conduct cannot interpret the term' is stated without the fact it excludes: Grace's 'appropriate monthly repayments' from 8 April 2024 (and his own 'I have until 8 April 2025'). Name them (+10). A reader should not have to infer which conduct is meant.
14. **Footnote style is inconsistent.** Judges are named in every footnote except *Masters* (fn 6: Dixon CJ, McTiernan and Kitto JJ) and *Australian Woollen Mills* (fn 31 and 36: the Court). Either name them or adopt one convention.

3. Currency per authority (WebSearch and course texts)

Authority	Status
Gibson [1979] 1 WLR 294	Good law; offer and invitation distinction unaffected.
Empirnall (1988) 14 NSWLR 523	Good law; routinely applied on acceptance by conduct.
Brambles (2001) 53 NSWLR 153	Good law; 191 is Ipp AJA for the majority (Mason P agreeing); 164 and 177

	are Heydon JA, who disagreed in part.
Integrated Computer (1988) 5 BPR 11,110	Good law.
Eccles v Bryant [1948] Ch 93	Good law; '[1948] Ch 93' is the correct report.
Ermogenous (2002) 209 CLR 95	Good law; the leading HCA authority on intention.
Masters v Cameron (1954) 91 CLR 353	Good law; supplemented by the fourth category (*Sinclair Scott*; *Baulkham Hills*), not doubted.
Godecke v Kirwan (1973) 129 CLR 629	Good law; 646–7 is Gibbs J's obiter.
Meehan v Jones (1982) 149 CLR 571	Good law.
Thorby v Goldberg (1964) 112 CLR 597	Good law (cited through Mason J).
Coulls (1967) 119 CLR 460	Good law on privity; *Trident* criticised the rule's merits but did not overrule it.
Port Jackson (1978) 139 CLR 231	**Reversed** by the Privy Council, *New York Star* (1980) 144 CLR 300 (disclosed in fn 16); Lord Reid's requisites themselves were adopted, not doubted.
Scruttons v Midland Silicones [1962] AC 446	Good law; Lord Reid at 474 adopted in *The Eurymedon*.
Sundell (1955) 56 SR (NSW) 323	Good law but **qualified** in NSW by the practical benefit line (*Musumeci v Winadell* (1994) 34 NSWLR 723). This is immaterial here because the answer finds no existing duty.
Wigan v Edwards (1973) 47 ALJR 586	Good law.
Banque Brussels (1989) 21 NSWLR 502	Good law; first instance (Rogers CJ, Comm D), correctly not described as appellate.
Upper Hunter (1968) 118 CLR 429; *Scammell* [1941] AC 251	Good law.
Trident (1988) 165 CLR 107	Good law; Deane J's statement of the general rule is uncontroversial.
Australian Woollen Mills (1954) 92 CLR 424	Good law (misapplied at fn 31: see C2).
Roscorla v Thomas (1842) 3 QB 234	Good law, subject to *Pao On*.
Pao On [1980] AC 614	Good law; the three conditions at 629–30 are applied in Australia.

Sources checked: ICLR, *New York Star* (PC); vLex, *Port Jackson Stevedoring v Salmond and Spraggon*; *Musumeci v Winadell* summary.

4. Is this the objectively best answer?

No. It is a very good answer, accurate at source to a degree few scripts reach, and its reasoning on the 12 February email, *Meehan* and illusoriness, and privity is close to the best that 1,500 words allow. It is not the best answer for five reasons:

1. **Part I answers the wrong claimant's question first.** It defends against Grace instead of testing Rocky's own best claim, that AMPL's advance at his request was his lending.
2. **Three points that matter to Rocky's exposure are missing.** The letter-of-comfort argument against his being bound by 'ensure' is not made. The *Pao On* third-party answer on consideration is absent. The duty to co-operate is not put on 'once Grace repays'.
3. **Two authorities are stretched beyond what they decide.** *Australian Woollen Mills* is used for a bilateral promise. Lord Reid's carrier and stevedore requisites are used for whether a director binds his company.
4. **One narrated fact is downgraded to a party's assumption** (C1), and Part I and Part II disagree on the guarantee (C3).
5. **The March instalment and the further information about whom Pierre spoke for are not used.** Both decide parts of the bottom line.

A better answer would, within the same words, do the following: - **Funding.** Cut the restatements to pay for about +100 words of missing argument: the final paragraph's re-quotation of the clause, 'Grace's … is therefore right, but signature is not the test' compressed, and the duplicated condition reasoning in the last paragraph. - **Part I.** Open on Rocky's claim against Grace and dispose of it on the four mismatches. - **II.C2 and II.D.** Put *Pao On* 632 for the Pierre branch, and the comfort-letter point both ways for Rocky's undertaking. - **II.H and II.I4.** Name and meet the duty to co-operate, and give the March instalment as the 'arguable' breach on the 8 April reading. - **Citations and the guarantee.** Fix C1 to C3.

5. Margin comments per paragraph

- **I ¶1 (offer).** Good use of *Gibson*'s contrast with 'may be prepared to sell'. However, the opening frames Grace's claim; Rocky is the client and the question is his claims. Further analysis is required as your statement is conclusive on 'Rocky declined, so no contract formed': say why a 'not interested' reply to a proposal for Rocky to offer leaves nothing to accept.
- **I ¶2 (acceptance, consideration).** Acceptance is well done: 'Confirmed' answered 'confirm agreement'. On consideration, ensure your citation precisely supports the proposition for which it is relied (fn 4 is a passage on offer-and-acceptance theory).
- **I ¶3 (intention).** Strong. *Godecke* is put for Grace and distinguished on 'in an objective sense', and whose satisfaction counts is decided once. Name the third *Masters* class you are applying. Gibbs J at 646–7 is obiter; say so.
- **I ¶4 (certainty).** Excellent: honesty is put and met on Gibbs CJ's own limit, 'only to the fulfilment of a condition'. Raising 'this morning' as further information is apt.
- **I ¶5 (privity).** Accurate on *Coulls* 486–7 and the signature point. However, 'took his guarantee' contradicts Part II (C3). 'Neither performed his email' needs its reasons.
- **I ¶6 (conclusion).** Clean. 'Whenever the 12 months began' is a good cross-reference.
- **II ¶1 (offer, acceptance).** Correct. Disclose that Lord Greene MR spoke of exchanges of contracts before borrowing his words.
- **II ¶2 (who promised).** The reasoning on 'you' against AMPL's office is good, but the agency requisites are the wrong test (contestable 2). Name the further information.
- **II ¶3 (existing legal duty).** Good: the rule is named, Mason J's limit is applied, and 'goes beyond' is well found. Add *Pao On* for the Pierre branch.
- **II ¶4 (intention).** The onus is correctly placed. The opposing point for Rocky's own undertaking (letter of comfort) is not put.
- **II ¶5 (certainty).** Sound. Reading 'ensure' as a promise of a result is the right lean.
- **II ¶6 (guarantee clause).** The handling of *Empirnall* 534 and 535–6 is careful and the inference is marked. However, the

'provided by Rocky' sentence misreads a proven fact (C1), and fn 31 is the wrong authority (C2).

- **II ¶7 (consideration for the guarantee).** Very good: *Roscorla*, *Pao On* and AMPL's fallback (signing after the clause) are all well put. *Pao On*'s third condition is omitted.
- **II ¶8 (12 months).** Very good: the 'recorded' answer on the 4% rate is a sharp point. Name the conduct that is excluded.
- **II ¶9 (condition).** Correctly classed as a condition precedent to the obligation, not to the contract. The duty to co-operate is absent.
- **II ¶10 (conclusion).** Exposure is stated precisely on both readings, as R-AD requires. The point that he forfeits the $10,000 if he pays himself is correctly drawn from the condition. Add the March instalment.

6. Marks

Holistic: 84/100 (Distinction, high; one step below HD). It is accurate, well hedged and well cited. It falls short of HD because of the misframed Part I and the three missing arguments that bear on Rocky's own exposure.

Rubric (SHEET_v12 read with R-AB to R-AE): 80/100.

Grid, in LAWS1061 format:

Item	Pts	Exc	VG	Good	Fair	Poor	Omit'd	Score
P Preliminary (reimbursement; Development Agreement)	2.0	x						2.000
I.A Offer	3.0	x						3.000
I.B Acceptance	2.0	x						2.000
I.C Consideration: ensure your citation precisely supports the proposition (fn 4)	2.0		x					1.500
I.D Intention: *Masters* class not named; Gibbs J's obiter used without its status	6.0		x					4.500
I.E Certainty	3.0	x						3.000
I.F1 Rocky lent nothing; agency: further analysis is required as your statement is conclusive	2.5		x					1.875
I.F2 Privity: rule, parties, joint promisee, signature	7.5	x						7.500
I.F3 Routes around privity (agency only)	1.0		x					0.750
II.A Offer	2.5		x					1.875
II.B Acceptance (Lord Greene MR's analogy undisclosed)	3.0		x					2.250
II.C1 Price of Rocky's promise (Pierre branch absent)	1.5		x					1.125
II.C2 Existing legal duty rule (*Pao On* 632 absent)	5.5		x					4.125
II.D Intention (letter of comfort point absent)	5.0		x					3.750
II.E Certainty	2.5		x					1.875
II.F1 Rocky the promisee (not stated)	1.0				x			0.450
II.F2 Who promised (wrong test; further information unnamed)	4.0		x					3.000
II.G The 12 months (excluded	5.0		x					3.750

conduct unnamed)								
II.H Condition precedent (duty to co-operate absent)	4.5		x					3.375
II.I1 Burden aspect; own undertaking (fn 31)	4.0		x					3.000
II.I2 Content and assent (‘provided by Rocky’, C1)	3.5		x					2.625
II.I3 Consideration moving from AMPL	4.0	x						4.000
II.I4 Timing and consequences (March instalment absent)	5.0		x					3.750
R1 Style and clarity	4.0		x					3.000
R2 Application of law to facts	3.0		x					2.250
R3 Layout and structure (party headings, R-AC)	2.0	x						2.000
R4 Issues and non-issues	2.0		x					1.500
R5 Prioritisation (Part I framed on Grace’s claim)	1.5		x					1.125
R6 Uncertainty and further information	2.0		x					1.500
R7 Terminology	1.0		x					0.750
R8 Citation AGLC4 (fn 31; judge naming inconsistent)	2.5		x					1.875
R9 Word count and format	1.0	x						1.000
R10 Consistency across Parts (C3)	1.0		x					0.750

Arithmetic: - Excellent items: 2 + 3 + 2 + 3 + 7.5 + 4 + 2 + 1 = 24.5. - Very Good items: 74.5 points × 0.75 = 55.875. - Fair item: 1.0 × 0.45 = 0.45. - Sum: 24.5 + 55.875 + 0.45 = 80.825. - Automatic deductions: none. C1 is graded once inside II.I2 under the one-error rule. D7 is not engaged (1,491 = 1,488 + 3). There is no D9 item. - Mark: 80.825, rounded down to **80**.

Fixing C1 to C3 alone lifts R8, R10 and II.I2 toward Excellent, for about +2. Fixing contestable points 1, 5, 6, 7 and 8 moves II.C2, II.D, II.H, II.I4 and R5 to Excellent, for about +7.5.